

KUVAL PROJECTS PVT. LTD.

Ground Floor, Pastina Villa, Post Office NIO, Dona Paula, Goa -403004

Regd A.D / By Courier

Tuesday, 19 March 2024

To,

1. Mrs. Albertina Trindade;
2. Mr. Riva Anthony Trindade;
3. Mrs. Karita Trindade.

All residents of Palbrika Mansion,
House No. 21/23/A, Near Rosary School,
P.O. NIO, Dona Paula,
Tiswadi, Goa – 403 004.

- ✓ 4. Mr. Virkam C. Shah
5. Mr. Murlidhar Sadarangani

Members of M/s. PVM Associates,
Block B, Wankhede Stadium, D Road,
Churchagate , Mumbai 400020

**SUB:- REFERENCE IN TERMS OF CLAUSE 27 IN RESPECT OF
DISPUTES ARISING UNDER JOINT VENTURE AGREEMENT
DATED 25.04.2014**

NOTICE OF ARBITRATION

I am addressing this notice on behalf of Kuval Projects Pvt. Ltd., a Company having its Registered Office at Ground Floor, Villa Pastina, Dona Paula, Goa – 403 004 with particular reference to – (i) Letter dated 17.10.2022 from Kuval Projects Pvt. Ltd.; and (ii) Joint Venture Agreement dated 25.04.2014, all of which are subject matter of this Notice and I have to address you as under:–

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WHEREAS :—

1. Kuval Projects Pvt. Ltd., is a reputed business entity engaged in the business of infrastructure and land development.
2. That Late Mr. Pascoal Trindade and Mr. Ram Daryanani were close associates since 1990 for construction and development of a project “Aldeia-de-Goa” at Village Bambolim, Tiswadi Goa.
3. That in or around 2013, Kuval Projects Pvt. Ltd was approached by M/s. PVM Associates through Late Mr. Pascoal Trindade who proposed the property bearing Survey No. 93/3 of Village Bambolim, Goa for joint development.
4. That after due discussion and negotiations with Late Pascoal Trindade, Mr. Vikram Shah and Mr. Muralidhar Sadarangani, Kuval Projects approved the said property for joint development relying upon the representations contained in the Joint Venture Agreement dated 25.04.2014.
5. In pursuance thereof an amount of Rs. 2,21,00,000/- (Rupees Two Crores Twenty One Lakhs Only) has been paid by us to M/s. PVM Associates as provided in the said Agreement as and by way of non-interest bearing refundable deposit.
6. That after certain modifications in the plans and upon obtaining approval from the concerned authorities, the construction on the said property commenced in the later part of the year 2015 and continued the same till 2020 by which time 80% of the construction was completed.

7. However, thereafter vide Order dated 13.03.2020 passed by the Court of Civil Judge Senior Division at Panaji, Goa in Special Civil Suit No. SCS/52/2013/A, Mr. Pascoal Trindade and Mrs. Albertina Trindade were restrained from undertaking any or all the activities on the properties by way of Temporary Injunction. This in turn has stopped Kuval Projects Pvt. Ltd., from continuing with the development in the said property.
8. As per records, on the demise of Late Pascoal Trindade you i.e. Mr. Riva Trindade and Mrs. Karita Trindade have been added as parties to the said suit as his legal representatives/ heirs.
9. That in October 2020, M/s. PVM Associates through Mr. Vikram Shah along with Late Mr. Pascoal Trindade had approached the Comunidade of Bambolim for the amicable settlement of all the litigations and even finalised the draft Consent Terms.
10. That vide Letter dated 20.11.2020 addressed by Late Mr. Pascoal Trindade and Mrs. Albertina Trindade to the Managing Committee of the Comunidade of Bambolim, a proposal of settlement was offered in order to compromise all pending litigation and disputes with the Comunidade of Bambolim.
11. That on the basis of the representations made by Late Mr. Pascoal Trindade to Loonkar Developers Pvt. Ltd. to our knowledge, the said Loonkar Developers Pvt. Ltd. earmarked an area of 5,000 sq. mts., for allotment to the Comunidade of Bambolim for construction of certain facilities to be used as a recreational and welfare centre for the villagers.

12. That in pursuance of the above draft consent terms were sent for the approval from the Administrative Tribunal and thereafter the Revenue Department. However, due to ill health of Late Pascoal Trindade in the later part of the year 2021 and thereafter his demise, the entire process came to a standstill.
13. It is observed by us that the settlement proposal has not been acted and the consent terms as agreed are till date not executed.
14. On conducting inquiries with M/s/ PVM Associates, it is informed to us that the same is on account of your non-cooperation for the closure of the proceedings and/or to execution of the required documentation etc., which has resulted in delay.
15. We are concerned with the above as this jeopardises our investment for development of the said properties.
16. That vide Letter dated 17.10.2022 addressed by us through the undersigned Director, Mr. Ram Daryanani, we earnestly solicited your co-operation in this regard. However, till date we have not received any productive response.
17. Unfortunately, we are constrained to treat this as a dispute and are compelled to invoke Clause 27 (Arbitration Clause) of the said Joint Venture Agreement dated 25.04.2014 and seek reference of the same for Arbitration before the Sole Arbitrator. We wish to appoint, Senior Advocate Shri. Jayant Mulgaonkar at Panaji, Goa as the Sole Arbitrator.

18. Without prejudice to this notice, we are still willing to find an amicable resolution to the above disputes.

19. We request you to respond within 30 days whereafter we shall be compelled to seek reference and commence arbitral proceedings.

Yours sincerely,

For Kuval Projects Pvt. Ltd



(Ram Daryanani)

C.C. to Mr. Vikram Shah & Mr. Murlidhar Sadarangani, members of M/s.
PVM Associates,